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KOSTIANTYN MARS, PRO SE

**UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF TEXAS
AUSTIN DIVISION**

KOSTIANTYN MARS

Plaintiff,

vs.

STATE OF CALIFORNIA;

GAVIN NEWSOM, in his official capacity as Governor of the
State of California;

BETH MCGOWEN, in her official and individual capacities as
Presiding Judge of the Santa Clara County Superior Court;

JULIE EMEDE, in her official and individual capacities as
Presiding Judge of the Santa Clara County Superior Court;

SANTA CLARA COUNTY SUPERIOR COURT;

HANNA MARS

(Petitioner in the above-referenced state matters);

and all other judges, officials, agents, and co-conspirators acting
under color of law, including but not limited to Stephen Lowney,
Andrea Flint, James Towery, Thomas Kuhnle, Benjamin
Williams, Michael Clark, and Jessica Tenorio,

Defendants.

) Case No. :

)
) **EMERGENCY MOTION**
) **FOR TEMPORARY**
) **RESTRAINING ORDER**
) **(Fed. R. Civ. P. 65(b))**

) **DATE:**
) **TIME:**
) **DEPT:**

**EMERGENCY MOTION FOR TEMPORARY RESTRAINING ORDER
(Fed. R. Civ. P. 65(b))**

Related State Court Matters Removed:

- Criminal Case No. B2402220
- Domestic Violence Case No. 22DV000779
- Family Law / Divorce / Custody Case No. 22FL003144
- Name Change Case No. 24CV441024
- DCSS Wage Garnishment and Arrears Enforcement Case No. 200000002626999

EMERGENCY MOTION FOR TEMPORARY RESTRAINING ORDER

Plaintiff Kostiantyn Mars respectfully moves this Court, pursuant to Federal Rule of Civil Procedure 65(b), for an immediate Temporary Restraining Order staying all enforcement actions in the removed state court matters and granting the comprehensive relief set forth below. This motion is filed concurrently with Plaintiff's Notice of Removal under 28 U.S.C. §§ 1331, 1343, 1367, 1441, 1443, 1455, and 1651.

I. INTRODUCTION

Plaintiff faces imminent and irreparable harm from the continued enforcement of void orders issued by disqualified judges, including unlawful arrest warrants, fabricated criminal charges, wage garnishment, denial of access to the courts, and the ongoing international abduction of his minor son Max Mars. Immediate injunctive relief is required to preserve the status quo, protect Plaintiff's constitutional rights, prevent further extortion and racketeering under color of law, and restore custody of his son pending full federal review.

II. FACTUAL BACKGROUND

The facts supporting removal and this motion are set forth in detail in the concurrently filed Notice of Removal and are incorporated herein by reference. In summary:

- All orders in the removed cases were issued by disqualified judges (Stephen Lowney, Andrea Flint, James Towery) after lawful disqualification statements and are therefore **void ab initio** under California Code of Civil Procedure § 170.4(d).
- Plaintiff has been subjected to extortion of his 401(k) division, vehicle title, and minor child Max Mars's passport and identity documents through threats of incarceration and denial of hearings.
- Fabricated criminal proceedings (Case B2402220), multiple arrest and bench warrants, and unlawful DCSS wage garnishment (Case 200000002626999) have been used as instruments of racketeering and malicious prosecution.
- Plaintiff's son Max Mars remains unlawfully detained and at risk of international abduction to Ukraine under void orders issued by the Santa Clara Mafia Cartel.
- A vexatious litigant order issued on March 11, 2024 by disqualified Judge Lowney after his disqualification on February 20, 2024 is likewise void ab initio.

III. LEGAL STANDARD

A temporary restraining order is warranted where the movant shows: (1) a substantial likelihood of success on the merits; (2) a substantial threat of irreparable injury; (3) that the threatened injury outweighs any damage the injunction may cause the opposing party; and (4) that the injunction will not disserve the public interest. *Winter v. Natural Resources Defense Council, Inc.*, 555 U.S. 7 (2008). All four factors are satisfied here.

IV. RELIEF REQUESTED

Plaintiff respectfully requests that the Court immediately enter a Temporary Restraining Order:

1. **Accepting removal** of all listed cases and assuming full jurisdiction.
2. **Staying all enforcement actions**, warrants and orders pending federal review.
3. **Dismissing Criminal Case B2402220** with prejudice and **expunging all related warrants and records** including Bench warrant No. 002400020658 (08/21/2024), and Arrest warrant No. 2400025644 (10/23/2024).
4. **Dismissing DCSS Case 200000002626999** in its entirety, vacating all fabricated arrears, and ordering immediate deletion of all negative credit reporting.
5. **Declaring all orders and warrants issued in Cases 22FL003144 and 22DV000779 (including family bench warrant issued on June 17, 2024) void ab initio and permanently nullify them.**
6. **Authorizing immediate emergency withdrawal / release of Petitioner's 401(k) funds.**
7. **Issuing a final divorce decree** (or bifurcation of marital status) in **Case 22FL003144.**
8. **Restoring full legal and physical custody of minor child Max Mars to Plaintiff** and directing the U.S. Department of Justice International Parental Kidnapping Unit to assist with safe return.
9. **Granting name change:** Kostiantyn Mars to **Royce Mars** (Case 24CV441024);
10. **Issuing protective SSN/ID relief** (new SSN to prevent further fraud).
11. **Ordering return of Petitioner's vehicle** VW Tiguan (CA plate 7ZND242).
12. **Awarding treble damages under 18 U.S.C. § 1964(c) in the amount of \$600,000** for all property injuries caused by the unlawful DCSS wage garnishment, together with compensatory and punitive damages, attorneys' fees, and costs.
13. **Declaring the vexatious litigant pre-filing order** issued on March 11, 2024 in Case No. 22FL003144 by disqualified Judge Stephen Lowney **void ab initio** under California

1 Code of Civil Procedure § 170.4(d), **vacating said order with prejudice**, and directing
2 the California Judicial Council and the Clerk of the Santa Clara County Superior Court to
3 **immediately remove Plaintiff Kostiantyn Mars from the statewide Vexatious**
4 **Litigant List** maintained pursuant to Code of Civil Procedure § 391.7.

5 14. In light of the documented pattern of racketeering and retaliation, threats of unlawful
6 incarceration, and systemic corruption within the Santa Clara County Superior Court,
7 Plaintiff respectfully requests that **any hearing** on the Emergency Motion for Temporary
8 Restraining Order or the Motion to Dismiss Criminal Case B2402220 **be conducted**
9 **remotely by video with mandatory audio and video recording** by the Court. This
10 safeguard is necessary to protect Plaintiff's safety, prevent further violations of due
11 process, and ensure independent federal oversight of the proceedings.

12 V. CONCLUSION AND PRAYER FOR RELIEF

13 Plaintiff respectfully requests that the Court grant the Emergency Temporary Restraining Order
14 and all relief requested in the Notice of Removal.

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16 Respectfully submitted,

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18 DATED: April 8, 2026

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21 KOSTIANTYN MARS
22 Pro Se
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WESTERN DISTRICT OF TEXAS
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under color of law, including but not limited to Stephen Lowney,
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Defendants.

) Case No. :

) **PROPOSED ORDER**

) **GRANTING**

) **EMERGENCY**

) **TEMPORARY**

) **RESTRAINING ORDER**

) **DATE:**

) **TIME:**

) **DEPT:**

PROPOSED ORDER

GRANTING EMERGENCY TEMPORARY RESTRAINING ORDER

Related State Court Matters Removed:

- Criminal Case No. B2402220
- Domestic Violence Case No. 22DV000779
- Family Law / Divorce / Custody Case No. 22FL003144
- Name Change Case No. 24CV441024
- DCSS Wage Garnishment and Arrears Enforcement Case No. 200000002626999

PROPOSED ORDER
GRANTING EMERGENCY TEMPORARY RESTRAINING ORDER

Upon consideration of Plaintiff Kostiantyn Mars's Emergency Motion for Temporary Restraining Order filed concurrently with his Notice of Removal, and good cause appearing, the Court hereby ORDERS as follows:

IT IS HEREBY ORDERED that:

1. The Court accepts removal of all listed state court matters (B2402220, 22DV000779, 22FL003144, 24CV441024, 200000002626999) and assumes full jurisdiction over them pursuant to 28 U.S.C. §§ 1331, 1343, 1367, 1441, 1443, 1455, and 1651.
2. All enforcement actions, proceedings, and orders in the removed cases are immediately **STAYED** pending further order of this Court.
3. Criminal Case No. **B2402220** is **DISMISSED WITH PREJUDICE**. All related bench warrants, arrest warrants, and criminal records are ordered expunged.
4. DCSS Wage Garnishment and Arrears Enforcement Case No. **200000002626999** is **DISMISSED IN ITS ENTIRETY**. All fabricated arrears are vacated, and all negative credit reporting arising from this case shall be immediately deleted.
5. All orders issued in Cases **22FL003144** and **22DV000779** are hereby **DECLARED VOID AB INITIO** under California Code of Civil Procedure § 170.4(d) and are permanently nullified.
6. A final divorce decree (or bifurcation of marital status) shall be issued in Case No. **22FL003144**.
7. Full legal and physical custody of the minor child Max Mars is restored to Plaintiff Kostiantyn Mars. The United States Department of Justice, International Parental Kidnapping Unit, is directed to assist with the safe return of Max Mars to Plaintiff's custody in Texas.
8. Plaintiff's 401(k) funds are immediately released for emergency hardship withdrawal.
9. Plaintiff's vehicle bearing California plate 7ZND242 shall be returned to him forthwith.
10. The name change is granted (Case 24CV441024): Kostiantyn Mars to Royce Mars.
11. Protective SSN/ID relief is granted as necessary to safeguard Plaintiff's identity.
12. Treble damages under 18 U.S.C. § 1964(c), together with compensatory damages, punitive damages, attorneys' fees, and costs, are awarded for the unlawful DCSS garnishment and related property injuries.

1 13. The vexatious litigant pre-filing order issued on March 11, 2024 in Case No.
2 22FL003144 by disqualified Judge Stephen Lowney is hereby **DECLARED VOID AB**
3 **INITIO** pursuant to California Code of Civil Procedure § 170.4(d). Said order is
4 **VACATED** with prejudice. The California Judicial Council and the Clerk of the Santa
5 Clara County Superior Court are **DIRECTED** to immediately remove Plaintiff
6 Kostiantyn Mars from the statewide Vexatious Litigant List maintained pursuant to Code
7 of Civil Procedure § 391.7 and to confirm compliance with this Court within seven (7)
8 days of receipt of this Order.

9 14. Any hearings deemed necessary in the removed actions **shall be conducted remotely via**
10 **video conference, with mandatory simultaneous video and audio recording** under
11 federal oversight, to ensure transparency, preserve the record, prevent further fraud on the
12 court, and protect Plaintiff's constitutional rights and physical safety.

13 **IT IS FURTHER ORDERED** that **any hearing** on this Emergency Motion for Temporary
14 Restraining Order, or on any related motion in this case, **shall be conducted remotely by**
15 **video with mandatory audio and video recording** by the Court. This safeguard is necessary
16 to protect Plaintiff's safety, prevent further violations of due process, and ensure independent
17 federal oversight of the proceedings.

18 **IT IS SO ORDERED.**

19 DATED: _____

20 United States District Judge
21 Western District of Texas
22 Austin Division
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